SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2026CUBC063904: SKYLER DITCHFIELD AND LINDSEY DITCHFIELD AS TRUSTEES OF THE SLK FAMILY REVOCABLE TRUST vs RORY CYPERS, et al.
07/30/2026 in Department 40
Motion to Compel Arbitration and to Stay Proceedings

Below is the Court's tentative decision with respect to the matter on calendar. The Court may adopt, modify, or change the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

I. Background

On March 26, 2026, Plaintiffs Skyler Ditchfield and Lindsey Ditchfield, as Trustees of the SLK Family Revocable Trust ("Plaintiffs") filed the Complaint against Defendants Rory Cypers, individually and as Trustee of the Rory J. Cypers Trust ("Defendants") pleading causes of action for (1) breach of contract, (2) breach of implied covenant of good faith and fair dealing, (3) breach of warranty of habitability, (4) breach of implied covenant of quiet enjoyment, (5) unjust enrichment, (6) interference with prospective economic advantage and (7) violation of Civil Code, § 1950.5. The Complaint alleges as follows. On or about December 23, 2024, Plaintiffs entered into a Lease, an Option to Buy Agreement and California Residential Purchase Agreement with Defendants which granted Plaintiffs the right to purchase the real property located at 12751 MacDonald Drive, Ojai, California 93023. Because of a mold problem, Plaintiffs were forced to move from the subject property and entered into a lease to rent another home to allow the remediation to take place. Once Plaintiffs vacated the property, Defendants moved into the property and Plaintiffs were never able to move back to the property. Because Defendants moved into the property, Plaintiffs were not able to exercise their option to purchase the property which has since appreciated in value. Further, Defendants have only returned the $100,000 option deposit and not the $44,000 security deposit.

On June 17, 2026, Defendants filed this Motion to Compel Arbitration. Plaintiffs have not filed an Opposition. On July 23, 2026, Defendants filed a Notice of Non-Opposition.

This matter is not scheduled for trial.

II. Analysis

Defendants move the Court for an order compelling Plaintiffs to arbitrate all claims asserted in this action pursuant to the arbitration agreement contained in the California Residential Purchase Agreement and adopted by the Option (to Buy) Agreement, and for a stay of this action in its entirety pending completion of arbitration. The motion is made pursuant to Code of Civil Procedure section 1281.2 and the Federal Arbitration Act, 9 United State Code sections 1 *et seq*. on the grounds that a valid written arbitration agreement exists and governs this dispute, which arises out of and relates to the parties' integrated lease/option/purchase transaction. Defendants further move for a mandatory stay pursuant to Code of Civil Procedure section 1281.4.

A. General Rules

A written agreement to submit to arbitration, a controversy thereafter arising is valid, enforceable and irrevocable, save upon such grounds as exist for the revocation of any contract. (Code Civ. Proc., § 1281.) California has a strong public policy in favor of arbitration. (*Moncharsh v. Heily & Blasé* (1992) 3 Cal.4th 1, 9.) Likewise, Section 2 of the Federal Arbitration Act (FAA) provides in relevant part: "[a] written provision in…a contract evidencing a transaction involving commerce to settle by arbitration a controversy thereafter arising out of such contract or transaction…shall be valid, irrevocable, and enforceable, save upon such grounds as exist at law or in equity for the revocation of any contract." (9 U.S.C.A. § 2.) "In determining the rights of parties to enforce an arbitration agreement within the FAA's scope, courts apply state contract law while giving due regard to the federal policy favoring arbitration." (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2012) 55 Cal.4th 223, 236.)

On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and where a party thereto refuses to arbitrate such controversy, the court shall order the petitioner and the respondent to arbitrate if it determines an agreement to arbitrate the controversy exists. (Code Civ. Proc., § 1281.2; *Gorlach v. Sports Club Co.* (2012) 209 Cal.App.4th 1497, 1505 [noting that "when presented with a petition to compel arbitration, the trial court's first task is to determine whether the parties have in fact agreed to arbitrate the dispute"].)

In deciding a petition to compel arbitration, trial courts must first decide whether an enforceable arbitration agreement exists between the parties, and then determine the second gateway issue of whether the claims are covered within the scope of the agreement. (*Omar v. Ralphs Grocer Co.* (2004) 118 Cal.App.4th 955, 961.) The initial burden is on the party petitioning to compel arbitration to prove the existence of the agreement by a preponderance of that evidence. (*Villacreses v. Molinari* (2005) 132 Cal.App.4th 1223, 1230.) Once petitioners allege that an arbitration agreement exists, the burden shifts to respondents to prove the falsity of the purported agreement, and no evidence or authentication is required to find the arbitration agreement exists. (*Condee v. Longwood Mgt. Corp.* (2001) 88 Cal.App.4th 215, 219.) Further, "the party opposing arbitration bears the burden of proving any defense, such as unconscionability." (*Pinnacle Museum Tower Assn*., *supra*, 55 Cal.4th 223, 236.)

A written provision in a contract to submit to arbitration a dispute arising out of the contract is valid, irrevocable and enforceable except on "such grounds as exist at law or in equity for the revocation of any contract." (9 United States Code, § 2 [contracts subject to the Federal Arbitration Act (FAA)]; Code Civ. Proc., § 1281 [contracts governed by state arbitration law].) Thus, the existence of a valid agreement to arbitrate is determined by reference to state law principles regarding the formation, revocation and enforceability of contracts generally. (See *Cronus Investments, Inc. v. Concierge Services* (2005) 35 Cal.4th 376, 385; see also *Kinney v. United HealthCare Services, Inc.* (1999) 70 Cal.App.4th 1322, 1327-28.)

Code of Civil Procedure section 1281.4 provides, in relevant part: "If a court of competent jurisdiction, whether in this State or not, has ordered arbitration of a controversy which is an issue involved in an action or proceeding pending before a court of this State, the court in which such action or proceeding is pending shall, upon motion of a party to such action or proceeding, stay the action or proceeding until an arbitration is had in accordance with the order to arbitrate or until such earlier time as the court specifies." (Code Civ. Proc., § 1281.4.) "The purpose of the statutory stay [under section 1281.4] is to protect the jurisdiction of the arbitrator by preserving the status quo until arbitration is resolved. [Citations.] [¶] In the absence of a stay, the continuation of the proceedings in the trial court disrupts the arbitration proceedings and can render them ineffective." (*Federal Ins. Co. v. Superior Court* (1998) 60 Cal.App.4th 1370, 1374-1375.) Even "a single overlapping issue is sufficient to require imposition of a stay." (*Heritage Provider Network, Inc. v. Sup. Ct*. (2008) 158 Cal.App.4th 1146, 1153; see also *Coast Plaza Doctors Hospital v. Blue Cross of Calif*. (2000) 83 Cal.App.4th 677, 693 [staying all non-arbitral claims other than for injunction]; *Federal Insurance Co., supra*, 60 Cal.App.4th at p. 1374 [stay required where continuation of proceedings in the trial court "disrupts" arbitration proceedings and "can" render those proceedings ineffective].)

B. Application

The Complaint alleges that "On December 23, 2024, SLK TRUST also entered into an Option (to Buy) Agreement and a California Residential Purchase Agreement (together the "PURCHASE AGREEMENT") with Defendants which granted Plaintiffs the right to the purchase the Subject Property for a total price of $4,300,000.00 which option expired on December 23, 2025." (Compl. ¶ 11.) The Complaint further alleges that "The PURCHASE AGREEMENT also provided that, 'Optionee may elect to move forward with the Purchase Agreement at any time during the 1-year Lease period with no penalty. Any tent will be pro-rated for the month in which escrow closes.'" (Compl. ¶ 13.)

Exhibit A to the Complaint is a copy of the Residential Lease or Month-to-Month Rental Agreement between Plaintiffs and Defendants. It states under paragraph 46 or the Agreement that other Documents between the parties included the "Option Agreement; Residential Purchase Agreement." (Compl, Ex. A, p. 7 of 9, ¶ 46.) Exhibit B to the Complaint includes copies of the Disclosure Regarding Real Estate Agency Relationship, California Residential Purchase Agreement and Joint Escrow Instructions, and Option Agreement.

Paragraph 28 of the Residential Purchase Agreement provides:

> ARBITRATION OF DISPUTES:
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> A. The Parties agree that any dispute or claim in Law or equity arising between them out of this Agreement or any resulting transaction, which is not settled through mediation, shall be decided by neutral, binding arbitration. The Parties also agree to arbitrate any disputes or claims with Agents(s), who, in writing, agree to such arbitration prior to, or within a reasonable time after, the dispute or claim Is presented to the Agent. The arbitration shall be conducted through any arbitration provider or service mutually agreed to by the Parties. The arbitrator shall be a retired judge or justice, or an attorney with at least 5 years of residential real estate Law experience, unless the Parties mutually agree to a different

arbitrator. Enforcement of, and any motion to compel arbitration pursuant to, this agreement to arbitrate shall be governed by the procedural rules of the Federal Arbitration Act, and not the California Arbitration Act, notwithstanding any language seemingly to the contrary in this Agreement. The Parties shall have the right to discovery in accordance with Code of civil Procedure 5 1283.05, The arbitration shall be conducted in accordance with Title 9 of Part 3 of the Code of Civil Procedure. Judgment upon the award of the arbitrator(s) may be entered Into any court having jurisdiction.

B. EXCLUSIONS: The following matters are excluded from mediation and arbitration: (i) Any matter that is within the jurisdiction of a probate, small claims or bankruptcy court; (ii) an unlawful detainer action; and (iii) a judicial or non judicial foreclosure or other action or proceeding to enforce a deed of trust, mortgage or installment land sale contract as defined in Civil Code § 2985.

C. PRESERVATION OF ACTIONS: The following shall not constitute a waiver nor violation of the mediation and arbitration provisions: (I) the filing of a court action to preserve a statute of limitations; (ii) the filing of a court action to enable the recording of a notice of pending action, for order of attachment, receivership, injunction, or other provisional remedies, provided the filing party concurrent with, or immediately after such filing makes a request to the court for a stay of litigation pending any applicable mediation or arbitration proceeding; or (iii) the filing of a mechanic’s lien.

D. AGENTS: Agents shall not be obligated nor compelled to mediate or arbitrate unless they agree to do so in writing. Any Agents(s) participating In mediation or arbitration shall not be deemed a party to this Agreement.

E. “NOTICE: BY INITIALING IN THE SPACE BELOW YOU ARE AGREEING TO HAVE ANY DISPUTE ARISING OUT OF THE MATTERS INCLUDED IN THE ‘ARBITRATION OF DISPUTES’ PROVISION DECIDED BY NEUTRAL ARBITRATION AS PROVIDED BY CALIFORNIA LAW AND YOU ARE GIVING UP ANY RIGHTS YOU MIGHT POSSESS TO HAVE THE DISPUTE LITIGATED IN A COURT OR JURY TRIAL. BY INITIALING IN THE SPACE BELOW YOU ARE GIVING UP YOUR JUDICIAL RIGHTS TO DISCOVERY AND APPEAL, UNLESS THOS RIGHTS ARE SPECIFICALLY INCLUDED IN THE ‘ARBITRATION OF DISPUTES’ PROVISION. IF YQU REFUSE TO SUBMIT TO ARBITRATION AFTER AGREEING TO THIS PROVISION, YOU MAY BE COMPLLED TO ARBITRATE UNDER THE AUTHORITY OF THE CALIFORNIA CODE OF CIVIL PROCEDURE. YOUR AGREEMENT TO THIS ARBITRATION PROVISION IS VOLUNTARY,” “WE HAVE READ AND UNDERSTAND THE FOREGOING AND AGREE TO SUBMIT DISPUTES ARISING OUT OF THE MATTERS INCLUDED IN THE ‘ARBITRATION OF DISPUTES’ PROVISION TO NEUTRAL ARBITRATION.’

(Compl., Ex. B, Residential Purchase Agreement, ¶ 28 p. 14 of 17.) Furthermore, the Option Agreement under "Dispute Resolution", provides that "Optionee and Optionor agree that any dispute or claim arising between them out of this Option shall be decided by the same method agreed to for resolving disputes in the attached Agreement." (Compl, Ex. B, Option Agreement p. 2 of 4, ¶ 7.)

"The party seeking arbitration can meet its initial burden by attaching to the petition a copy of the arbitration agreement purporting to bear the respondent's signature." (*Bannister v. Marinidence Opco, LLC* (2021) 64 Cal.App.5th 541, 543-544.) Defendants in this case have met this burden by highlighting Exhibit B to the Complaint, which bears Plaintiffs' signature as buyers. Though Defendants' signature do not appear in these documents, Defendants have met their initial burden and it is up to Plaintiffs to rebut its application. (See *Ramirez v. Golden Queen Mining Co., LLC* (2024) 102 Cal.App.5th 821, 832.) Since Plaintiffs have not filed an Opposition, the Court finds that there is a valid arbitration agreement between the parties.

Additionally, Plaintiffs' claims fall within the scope of the arbitration agreement. In fact, the Complaint repeatedly cites to the Residential Purchase Agreement and the Option Agreement as the bases for the claims in the Complaint.

Since Plaintiffs have not filed an Opposition and do not dispute that the arbitration agreement is enforceable and applies to the claims made in the Complaint, the Court grants Defendants' Motion to Compel Arbitration and stays this action pending the disposition of the arbitration under Code of Civil Procedure, section 1281.4.

III. Conclusion

Defendants' Motion to Compel Arbitration and To Stay Proceedings is GRANTED. The parties are ordered to proceed to arbitration.

This matter is stayed pending completion of arbitration. (Code Civ. Proc., § 1281.4.)

A status conference re: arbitration is scheduled for August 2, 2027 at 8:35 a.m. in Department 40. The parties are required to file a joint declaration regarding the status of the arbitration at least seven days before the hearing.

Notice to be provided by Defendants.